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CASE NAME: John J. Gerard Jr., as Trustee of the Gerard Revocable Marital Trust Agreement v. Janet G. Cuevas, et al.

Defendants' Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING

The Court SUSTAINS Defendants' demurrer to the First and Second Causes of Action of Plaintiff's First Amended Complaint without leave to amend. The Court directs Defendants to submit a proposed judgment of dismissal.

Defendants are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an unlawful detainer action. On May 31, 2024, plaintiff John J. Gerard Jr., as Trustee of the Gerard Revocable Marital Trust Agreement (Plaintiff) filed this action against defendants Janet G. Cuevas (Janet), Jorge H. Cuevas (Jorge)[1] (collectively, Defendants), and Does I through III, alleging the sole cause of action for unlawful detainer.

Default was entered against Jorge on July 8, 2024.

During the jury trial proceedings, the Court granted Plaintiff's oral motion to strike Defendant Janet's answer and the matter proceeding with a prove-up trial. On October 23, 2024, the Court entered judgment in favor of Plaintiff and against Defendants.

On November 21, 2025, the appellate division reversed the judgment and remanded the case to the trial court with instructions to set aside the order striking Janet's answer.

On August 11, 2026, Plaintiff filed the operative First Amended Complaint (FAC) against Defendants, alleging causes of action for breach of lease and common counts.

On August 10, 2026,[2] Defendants demurred to the FAC. On September 11, 2026, Plaintiff opposed the demurrer. On September 16, 2026, Defendants replied to Plaintiff's opposition.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

A demurrer can be utilized where the “face of the complaint” itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The “face of the complaint” includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 [“[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits”].)

A demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046-1047.)

REQUESTS FOR JUDICIAL NOTICE

The Court GRANTS Defendants' request for judicial notice. (Evid. Code, § 452, subd. (d).) The Court also GRANTS Plaintiff's request for judicial notice. (*Id.*, § 452, subds. (b)-(c).) However, the Court takes judicial notice only as to “the existence, content and authenticity of public records and other specified documents” and the legal effect of the documents' language when that effect is clear, it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265.)

DISCUSSION

Meet and Confer

Per Code of Civil Procedure section 430.41, subdivision (a), Defendants were required to meet and confer in person, by telephone, or by video conference before bringing this demurrer. (Code Civ. Proc., § 430.41, subd. (a).) Defendants failed to meet and confer by any of these methods. (Post Decl., ¶¶ 3-6.) Nevertheless, the Court may not overrule a demurrer for failure to adequately meet and confer. (Code Civ. Proc., § 430.41, subd. (a)(4).) The Court admonishes Defendants to comply with the Code of Civil Procedure going forward.

Amendment After Trial

(a) Except as provided in subdivisions (b) and (c), if the lessor brings an unlawful detainer proceeding and possession of the property is no longer in issue because possession of the property has been delivered to the lessor before trial or, if there is no trial, before judgment is entered, the case becomes an ordinary civil action in which:

(1) The lessor may obtain any relief to which he is entitled, including, where applicable, relief authorized by Section 1951.2; but, if the lessor seeks to recover damages described in paragraph (3) of subdivision (a) of Section 1951.2 or any other damages not recoverable in the unlawful detainer proceeding, the lessor shall first amend the complaint pursuant to Section 472 or 473 of the Code of Civil Procedure so that possession of the property is no longer in issue and to state a claim for such damages and shall serve a copy of the amended complaint on the defendant in the same manner as a copy of a summons and original complaint is served.

(2) The defendant may, by appropriate pleadings or amendments to pleadings, seek any affirmative relief, and assert all defenses, to which he is entitled, whether or not the lessor has amended the complaint; but subdivision (a) of Section 426.30 of the Code of Civil Procedure does not apply unless, after delivering possession of the property to the lessor, the defendant (i) files a cross-complaint or (ii) files an answer or an amended answer in response to an amended complaint filed pursuant to paragraph (1).

(Civ. Code, § 1952.3, subd. (a).)

Defendants demur to both causes of action of the FAC on the grounds that an unlawful detainer plaintiff cannot amend after trial to convert the matter into an ordinary civil action. Defendants contend that Civil Code section 1952.3 is the exclusive mechanism for converting an unlawful detainer into an ordinary civil action, permitting conversion only where possession is delivered to the lessor before trial or, absent a trial, before judgment. They argue that condition is not met because Defendants did not surrender possession, but they were removed by sheriff's writ after both a prove-up trial and entry of judgment. Defendants further contend that the general amendment statutes, i.e., Code of Civil Procedure sections 473 and 576, cannot override Civil Code section 1952.3's specific statutory restrictions on conversion. Because possession was recovered after trial and judgment, Defendants argue the action cannot be converted and the FAC's new causes of action are impermissible.

In opposition, Plaintiff contends that section 1952.3 contains no "voluntary surrender" requirement and that Defendants improperly import that term from an unrelated footnote in *Green v. Superior Court*. Plaintiff argues that Code of Civil Procedure sections 473, subdivision (a)(1), and 576 independently authorized the amendment the Court had already granted, so section 1952.3 is not the sole basis for amending the complaint. Relying on the 1976 Law Revision Commission history, Plaintiff contends section 1952.3 was enacted to promote judicial economy by avoiding a separate action once possession is no longer at issue. Plaintiff maintains that the appellate reversal was purely procedural and restored the parties to their original rights, leaving intact Plaintiff's right to recover contract damages while only possession cannot be restored. Plaintiff argues Defendants' reading would deny due process and exceed anything the statute or its legislative history intends, and asks the court to overrule the demurrer.

In reply, Defendants contend that Plaintiff never disputes the dispositive fact that possession was delivered only after trial and after judgment — the opposite of what section 1952.3 requires. They argue the "voluntary" debate is beside the point because the statute turns on the undisputed timing, which the post-judgment writ eviction did not satisfy. Defendants contend the restitution-on-reversal doctrine addresses what is restored after reversal, not the historical fact of when possession was taken, and cannot rewrite the section 1952.3 timeline. They argue that section 1952.3 is the specific statute governing conversion and controls over the general amendment provisions of sections 473 and 576. Defendants argue that because the statutory precondition was never met, the matter cannot be converted and the demurrer should be sustained without leave to amend, leaving Plaintiff to a separate action.

The Court finds Defendants' arguments persuasive. First, the Appellate Division reversed the prior judgment solely because striking Janet's answer was an unauthorized terminating sanction and violated her right to a jury trial, and remanded "with instructions to set aside the order striking defendant's answer". (Appeal – Opinion Received (11/21/25).) The Appellate Division did not reach the issues identified in Defendants' demurrer. (Id.)

Second, there is no dispute that Defendants did not deliver possession before trial or before judgment and that they were removed from the property after a prove-up trial and entry of judgment. The judgment was entered October 23, 2024, the sheriff's writ return indicates having placed Plaintiff "in quiet and peaceful possession of the premises" on February 3, 2025, and the FAC alleges Plaintiff regained possession on approximately February 3, 2025. (FAC, ¶ 10; Judgment – Unlawful Detainer (10/23/24); Writ of Possession (10/31/24); Writ – Return (2/3/25); Appeal – Opinion Received (11/21/25); Starr v. Ashbrook (2023) 87 Cal.App.5th 999, 1014 [a court can take judicial notice of its own records].) As such, the statutory condition requiring delivery of possession before trial or judgment is not met. (Civ. Code, § 1952.3, subd. (a).) The Court of Appeal in Lynch & Freytag v. Cooper (1990) 218 Cal.App.3d 603 (Lynch) noted a prior case involving a landlord who, after a verdict, attempted to convert an unlawful detainer action into an ordinary civil action for rent through a post-trial motion that was rejected, while the action in the Lynch case "was converted to an ordinary civil action long before trial." (Id. at p. 610.) Additionally, whether the surrender was voluntary is ultimately beside the point; what matters is whether possession was delivered before trial or judgment. (See Civ. Code, § 1952.3, subd. (a).)

Third, Plaintiff's restitution-on-reversal argument does not change the historical sequence here because whatever rights the Appellate Division's reversal restored, it does not transform possession obtained in February 2025 into possession delivered before trial for purposes of Civil Code section 1952.3, subdivision (a). (See Civ. Code, § 1952.3, subd. (a).) Plaintiff's opposition acknowledges that "the only 'right' not capable of being 'restored' is possession." (Opp., 6:7-13.) Also, if the reversal is absolute, it would have entitled Janet to having possession restored to her, which would put possession back in dispute, so the necessary condition for conversion under section 1952.3, subdivision (a), would not be triggered, but that was not ordered by the Appellate Division. (See Appeal – Opinion Received (11/21/25); Stockton Theatres, Inc. v. Palermo (1953) 121 Cal.App.2d 616, 619; Civ. Code, § 1952.3, subd. (a).)

Finally, Code of Civil Procedure section 1952.3 is also the specific statute governing conversion and therefore governs here, notwithstanding the general amendment statutes of Code of Civil Procedure sections 473, subdivision (a)(1), and 576. (Civ. Code, § 1859; Med. Bd. of California v. Superior Ct. (2001) 88 Cal.App.4th 1001, 1004-1005; People v. Superior Ct. of Riverside Cnty. (2022) 81 Cal.App.5th 851, 884.) Since possession was not delivered prior to the trial, Plaintiff does not meet the conditions for conversion to an ordinary civil action.

The Court finds this basis sufficient grounds to sustain the demurrer, and the Court declines to reach the other grounds raised in the demurrer. Additionally, the facts undermining Plaintiff's claims cannot be remedied by amendment. Therefore, the Court SUSTAINS the demurrer to the First and Second Causes of Action of the FAC without leave to amend.

CONCLUSION

The Court SUSTAINS Defendants' demurrer to the First and Second Causes of Action of Plaintiff's First Amended Complaint without leave to amend. The Court directs Defendants to submit a proposed judgment of dismissal.

Defendants are ordered to give notice of the Court's ruling within five calendar days of this order.

[1] The Court refers to Defendants by their first names only to avoid confusion. No disrespect is intended.

[2] It appears Plaintiff served the FAC on Defendants before filing it with the Court given Defendants' filing of the demurrer before Plaintiff filed the FAC with the Court.